

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S EVIDENTIARY
OBJECTIONS TO THE
DECLARATION OF TYLER J.
O'CONNELL**

(Evid. Code, §§ 350, 352, 356, 702, 800; Cal. Rules of
Court, rule 3.1354)

Hearing:

Date: May 6, 2026

Time: 9:00 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

OBJECTIONS

Plaintiff Franciscus Dylan Rosario, pursuant to Evidence Code sections 350, 352, 356, 702, and 800, and California Rules of Court, rule 3.1354, hereby submits the following paragraph-by-paragraph evidentiary objections to the Declaration of Tyler J. O’Connell filed April 23, 2026 in support of Defendants’ Opposition to Plaintiff’s Motion for Leave to File Second Amended Complaint (CGC-25-631801).

Objections Table

¶	Objectionable			Ruling
	Content	Grounds	Authority	Requested
3	“Plaintiff’s allegations squarely target Defendants’ litigation conduct”	Legal conclusion; improper lay opinion on the ultimate legal issue pending on the anti-SLAPP; invades the province of the Court	Evid. Code §§ 702, 800	Sustain; strike

¶	Objectionable	Grounds	Authority	Ruling
	Content			Requested
4	“[T]he entirety of the purported legal theories in Plaintiff’s FAC focus inextricably on Defendants’ protected litigation conduct”	Legal conclusion; improper expert-style opinion without qualification; ultimate issue	Evid. Code §§ 702, 800	Sustain; strike
6–7	“[N]ine (9) days after” and “ten (10) days after” framing of the April 19 and April 20 service	Argumentative; omits the April 21 reset to May 6, 2026 (see ¶ 10); incomplete	Evid. Code § 356	Sustain as to the characterization; receive completeness material

¶	Objectionable	Grounds	Authority	Ruling
	Content			Requested
8	Characterization of Plaintiff's April 17 and April 20, 2026 emails as threats of "impending professional consequences" and "a negative mark on [counsel's] Bar license"	Argumentative; legal conclusion; inverts statute – the emails are mandatory safe-harbor notices under CCP § 128.7(c)(1) and Bus. & Prof. Code § 6086.7(a)(2) and candor notices under Rule of Professional Conduct 3.3	Evid. Code §§ 352, 702	Sustain; strike
9	"[O]nly 8 days away"	Argumentative; incomplete; the motion was promptly reset to May 6, 2026 (18 days from the operative April 20 service)	Evid. Code §§ 352, 356	Sustain; strike

¶	Objectionable	Grounds	Authority	Ruling
	Content			Requested
12	Characterization of Plaintiff's discovery as served "despite Defendants' Anti-SLAPP motion pending"	Legal conclusion; misleading – CCP § 425.16(g) stays only discovery "relating to the motion," not all discovery; non-motion-related discovery and discovery directed to non-moving parties are not stayed	Evid. Code §§ 352, 702	Sustain; strike

¶	Objectionable	Grounds	Authority	Ruling
	Content			Requested
13	“Aspersions” narrative, including the “RAT” capitalization reference to Ms. Navaratsingham and the “Ms. Alberta Reyna” reference, together with Exhibit H (order from the underlying personal-injury jury trial)	Relevance (Evid. Code § 350); unduly prejudicial / consumes undue time (§ 352); not probative of any ground for denying leave to amend; improper character evidence	Evid. Code §§ 350, 352	Sustain; strike; exclude Ex. H
14	“[B]arred as a matter of law, given Defendants’ pending Anti-SLAPP motion”	Legal conclusion; ultimate issue; improper lay opinion on controlling law	Evid. Code §§ 702, 800	Sustain; strike

¶	Objectable		Authority	Ruling
	Content	Grounds		Requested
F.n. 1	Selective exhibit attachment; Defendants attach only Plaintiff's outgoing emails and omit Plaintiff's April 16, 2026 meet-and-confer letter, the SAC/TAC attachments referenced in the served emails, and Plaintiff's concurrently served Opposition to the Special Motion to Strike	Rule of completeness; misleading; incomplete record	Evid. Code § 356	Sustain; order complete exhibits received

Request for Completeness Under Evidence Code Section 356

If the Court declines to sustain Plaintiff's objections to any portion of the O'Connell Declaration, Plaintiff requests, under Evidence Code section 356, that the Court also receive and consider:

1. Plaintiff's April 16, 2026 meet-and-confer letter to Porter Scott (the document Defendants

omit from Exhibit B);

2. The full text of Plaintiff's April 17, 2026 and April 20, 2026 emails, including all attachments (SAC, TAC, and safe-harbor notice language);
3. The attachments referenced in the served emails at O'Connell Declaration Exhibits B, C, E, F, and G (SAC packet, TAC packet, POS-050 proofs, and related filings), which are already on the Court's docket in CGC-25-631801;
4. Plaintiff's concurrently served Opposition to the Special Motion to Strike (to be heard May 12, 2026, in this action).

Preservation of Record

Plaintiff preserves these objections for appeal. Failure by the Court to rule on any objection shall be deemed a denial of that objection for purposes of appellate review. (CRC 3.1354(c).)

NOTE TO CLERK: Plaintiff is proceeding in propria persona with a fee waiver granted December 23, 2025 under Government Code section 68634(e) and is excluded from mandatory e-filing under LRSF 2.11 / CRC 2.253(a)(3). Filed at Room 103.

Dated: April 29, 2026 · Rohnert Park, California

/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO, Plaintiff, In Pro Per 7624 Melody Drive, Rohnert Park, CA 94928 Tel: 650.488.7510 · E: soltrinox@gmail.com

Dated: April 24, 2026



/s/ *Franciscus Dylan Rosario*

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

7624 Melody Drive

Rohnert Park, CA 94928
Tel: 650.488.7510
E: soltrinox@gmail.com